IN THE COURT OF CRIMINAL APPEALS OF TEXAS

No. PD-0366-17

Samuel Ukwuachu, Appellant

v.

The State of Texas, Appellee

Appeal from McLennan County

STATE'S PETITION FOR DISCRETIONARY REVIEW

The State of Texas

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April 20, 2017

NAMES OF ALL PARTIES TO THE TRIAL COURT'S JUDGMENT

The parties to the trial court's judgment are the State of Texas and Appellant, Samuel Ukwuachu.

The case was tried before the Honorable Matt Johnson, 54th District Court, McLennan County, Texas.

Counsel for Appellant at trial was Jonathon P. Sibley, 801 Washington Avenue, Suite 300, Waco, Texas 76710. Counsel for Appellant on appeal was William A. Bratton, III, 2828 Routh Street, Suite 675, Dallas, Texas 75201.

Counsel for the State at trial were Hilary LaBorde and Robert Moody, Assistant Criminal District Attorneys, 219 North 6th Street, Suite 200, Waco, Texas 76701. Counsel for the State on appeal and before this Court is Sterling Harmon, Chief Appellate Assistant Criminal District Attorney, 219 North 6th Street, Suite 200, Waco, Texas 76701.

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STATEMENT REGARDING ORAL ARGUMENT

The State requests oral argument. The State is asking this Court to decide an important issue regarding the scope of the Texas "Rape Shield" law as expressed under Rule of Evidence 412, and its interplay with other rules of evidence. Namely, the purpose of Rule 412 as a rule of exclusion designed to protect victims of sexual assault has been called into question by the opinion of the court below. Determination of this case will require consideration of competing evidentiary doctrines and the proper balance to be struck between them. Discussion will help to clarify these matters and resolve the issues presented.

STATEMENT OF THE CASE

Appellant pleaded not guilty to the offense of Sexual Assault. He was found guilty at jury trial and sentenced to probation. Appellant presented six points of error on appeal to the 10th Court of Appeals. The court of appeals first overruled Appellant's complaint as to the sufficiency of the indictment, as a finding for Appellant on that point would have afforded greater relief than his other points of error. The court of appeals then found that the trial court had erred in refusing to admit text messages under Rules of Evidence 412 and 107. The court of appeals reversed the conviction and remanded the case for a new trial.

STATEMENT OF PROCEDURAL HISTORY

On March 22, 2017, the court of appeals reversed appellant's conviction in an unpublished opinion and remanded for a new trial. *Ukwuachu v. State*, 10-15-00376-CR, 2017 WL 1101284 (Tex. App.—Waco Mar. 22, 2017). No motion for rehearing was filed. The State's petition is due on April 21, 2017.

GROUNDS FOR REVIEW

1. The court of appeals misapplied the standard of review for admission of evidence under Rule 412 and 107 in a manner that so far departed from the accepted and usual course of judicial proceedings as to call for an exercise of the Court of Criminal Appeals' power of supervision.
2. The court of appeals' failure to conduct a proper harm analysis so far departed from the accepted and usual course of judicial proceedings as to call for an exercise of the Court of Criminal Appeals' power of supervision.

FACTUAL OVERVIEW

Appellant was indicted for Sexual Assault. (CR I – 7-8). Appellant's opening statement presented the defensive theory of consent. (RR V – 13).

The Complainant had called her friend Brittani, asking to be picked up from Appellant's apartment. (RR V – 26). Complainant appeared to be upset, and she reported that Appellant had raped her. (RR V – 28, 30).

Dr. Cheryl Wooten was a clinical psychologist who had counseled Complainant after the sexual assault. (RR V – 90, 95). Complainant exhibited symptoms warranting a PTSD diagnosis. (RR V – 96). Complainant had remained remarkably consistent in recounting details of the sexual assault.

The first time Complainant spent time with Appellant, he had "tried to do stuff," but Complainant had made it clear to him, through text messages and in person, that "that would not happen again." (RR V – 130). The first time Complainant went to Appellant's apartment, his roommate Peni Tagive was there. (RR V – 132-133). The second time Complainant went to Appellant's apartment, she had spent the night, sleeping in Appellant's bed. (RR V – 143). Nothing had happened with Appellant on that occasion, not even kissing. (RR V – 143).

On the morning of October 20th, Complainant had been at a homecoming party and returned to her apartment. (RR V – 146). Complainant saw Appellant at the party, who told her to call him when she got home. (RR V – 149). After they arrived at Appellant's apartment, Complainant was sitting on the edge of Appellant's bed. (RR V – 154). Appellant came and sat next to her and started getting "touchy and kind of feely." (RR V – 154). Complainant was trying to text her friend Celine

Antwi, and Appellant started making more moves. (RR V – 155). Complainant described the escalation of Appellant's advances, culminating in the sexual assault. (RR V – 155-158). While this was happening, Complainant was screaming, "Stop" and "No." (RR V – 159). She believed that if Tagive or anyone else was there, they would have heard, and she would have expected them to have done something. (RR V – 178-179).

When Appellant was finished, Complainant went into the bathroom to call someone. (RR V – 161). She recalled saying that she was "basically raped." (RR V – 163). She explained that what she meant by this was that she was actually raped. (RR V – 163).

At the completion of Complainant's direct testimony, Appellant requested a hearing regarding the text message conversation between Complainant and Celine Antwi. (RR V – 180). The record of that hearing was ordered sealed pursuant to Rule 412. (RR VI).

On the record, the trial court sustained the State's objections with regard to "what I perceive as the first conversation on the text messages." (RR VII – 5). The court elaborated that, "they're separate and distinct topics, separate and distinct conversations." (RR VII – 5-6).

A genital examination of Complainant revealed redness, which was painful to touch. (RR VIII – 54). There was bleeding of the hymen, the labia minora area was very red and painful to touch. (RR VIII – 55). There was

also bleeding at and right above the nine o'clock position and of the posterior fourchette. (RR VIII – 55). There was also a yellow granulation tissue, similar to a scab, indicating that the tissue was undergoing a healing process, consistent with an injury that had occurred earlier that morning. (RR VIII – 55-56).

Dr. William Lee Carter, a psychologist, testified to dynamics of sexual assault. (RR VIII – 87). He had not evaluated either Appellant or Complainant. (RR VIII – 91). His review of the case was consistent with being an opportunistic sex assault. (RR VIII – 99). Dr. Carter viewed Complainant's statement that "I got raped, basically," to mean that she was saying, in a word, that it was rape. (RR VIII – 108).

Appellant re-called Complainant in his case-in-chief. (RR VIII – 124). On cross-examination she sponsored State's Exhibit 10, an email she had written to Bethany McCraw, as a prior consistent statement. (RR XI – 20). The email supported Complainant's testimony that she never told McCraw that she and Appellant ever kissed, or that Appellant had tried to have oral sex with her. (RR XI – 22).

Appellant called Peni Tagive. (RR XI – 35). Tagive had seen Complainant at the apartment early one morning, and assumed that she had been sleeping in Appellant's room. (RR XI – 45).

Tagive testified that on the night of the offense, he heard Appellant's voice and a female voice, passing through the living room. (RR XI – 51-52). He believed he would have heard someone screaming in Appellant's room, but he did not hear any screaming, resisting or wrestling the rest of the night. (RR XI – 53-54).

The State impeached Tagive's testimony, showing prior inconsistent statements as to the timeline of events and Tagive's phone records showing that he was in different parts of town making calls at the time he claimed to be at the apartment. (RR XI – 58-61).

Appellant called Bethany McCraw regarding her investigative role in the case. (RR XI – 82-83). She was questioned regarding statements Complainant had made reflecting prior consensual sexual activity. (RR XI – 83-86). At one point, the State objected and the court gave an instruction to disregard McCraw's responses, "as it's not true, and it's not part of her notes…." (RR XI – 85). On cross, the State reiterated with McCraw that nowhere in her notes did it appear that Complainant reported having oral sex with Appellant. (RR XI – 86-88). McCraw also agreed that in Complainant's email, she did not say anything about oral sex. (RR XI – 88). Rather, she wrote, "He tried to kiss me and he tried to touch me in certain places but I brushed him off." (RR XI – 88).

Appellant claimed that the sex was consensual, and that he had had prior sexual relations with Complainant. (RR XI – 92-93). Appellant testified that about a week after they met, he and Complainant had "oral sex." (RR XI – 95). Complainant had stayed the night at his apartment on this occasion and another occasion. (RR XI – 96). Describing the prior encounter, Appellant testified that they had kissed, they had taken off their clothes, and "I sucked on her breasts, I fingered her, and she, uh, masturbated me." (RR XI – 97). This was what Appellant meant by "oral sex." (RR XI – 97). Regarding the charged offense, Appellant testified that Complainant never said "No," nor did she ever scream. (RR XI – 110). On cross, Appellant was impeached with his prior statement that Complainant "was very vocally into it." (RR XI – 152).

ARGUMENT AND AUTHORITIES: ISSUE ONE

The court of appeals misapplied the standard of review for admission of evidence under Rule 412 and Rule 107 in a manner that so far departed from the accepted and usual course of judicial proceedings as to call for an exercise of the Court of Criminal Appeals' power of supervision.

Texas Rule of Evidence 412 is unlike other rules of evidence. Whereas the presumption throughout most of the rules of evidence is in favor of admission, the opposite is true with Rule 412. *See, Robisheaux v. State*, 483 S.W.3d 205, 223 (Tex. App.—Austin 2016, pet. ref'd). Because of the

prejudice to the victim inherent in evidence of her sexual activity, this Court (along with the Supreme Court) crafted a framework designed to protect victims. In this case, the court of appeals ignored basic rules of evidentiary ruling review and misapplied the Rule 412 framework. As a result, the trial court was held to have abused discretion it was not called upon to exercise.

PRAYER FOR RELIEF

WHEREFORE, the State of Texas prays that the Court of Criminal Appeals grant this Petition for Discretionary Review, reverse the court of appeals decision and remand the case so that the court of appeals can consider Appellant's remaining points of error.

Respectfully submitted,
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CERTIFICATE OF COMPLIANCE

The undersigned certifies that according to the Microsoft Word 2010 word count tool the applicable portion of this document contains 3,053 words.

/s/ Sterling Harmon
STERLING HARMON

CERTIFICATE OF SERVICE

The undersigned certifies that on this 20th day of April, 2017, the State's Petition for Discretionary Review was served electronically through the electronic filing manager or e-mail on the parties below.

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